

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

ALYSSA WEAVER,

Petitioner

VS.

JOSEPH WILLIAM WEAVER,

Respondent

) Case Number: FDI-24-799611

) Hearing Date: June 18, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: CINDEE MAYFIELD

OTHER REVIEW HEARING

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) Petitioner Alyssa Weaver (Mother) and Joseph Weaver (Father) are the parents of Mackenzie, age 9 (DOB 7/13/2016) and Corey, age 6 (DOB 10/16/2019).
- 2) On November 27, 2023, in exchange for Mother dropping her request for a Domestic Violence Restraining Order (DVRO) against Father (see, consolidated case FDV-23-817072), the parties filed a stipulated parenting plan which placed the children in Mother's sole legal and sole physical custody for a period of at least one year. Father agreed to see a therapist specializing in domestic violence issues for 9 months and provide Mother with proof of attendance at an anger management class. Father had parenting time on the second, fourth and fifth weekends of each month from Friday at 6:00 p.m. until; Sunday at 6:00 p.m. and each Tuesday and Thursday from 4:00 p.m. until 7:00 p.m. Father was limited to caring for the children within a 30-mile radius of San Francisco.
- 3) Father filed a Request For Order (RFO) to modify custody and visitation on August 4, 2025. He requested that the court vacate the order prohibiting him from traveling more than 30 miles from

1 San Francisco with the children. He requested that the parties transition to a 2/2/5/5 equal
2 timeshare parenting plan.

- 3 4) The parties filed a stipulated Judgment of dissolution on February 2, 2026. The Judgment
4 reserved issues of child custody and visitation.
- 5 5) On December 5, 2025, the court granted Mother's request to appoint Minors' Counsel to
6 represent Mackenzie and Corey.
- 7 6) At a hearing on March 17, 2026, the court considered evidence that several Child Protective
8 Services (CPS) referrals had been made in 2024 and 2025 alleging physical and emotional abuse
9 of Corey by Father. Although the allegations had not been substantiated during the CPS
10 investigations, Minor's Counsel noted with concern that Corey had expressed suicidal ideation
11 and engaged in destructive behaviors such as head banging and violence directed at his peers. The
12 matter was set for review on June 18, 2026.
- 13 7) On June 8, 2026, Mother filed a Supplemental Declaration requesting that Father's visitation with
14 the children be suspended, or, in the alternative, severely restricted. Mother declared that the
15 children were reluctant to visit Father and were dysregulated following visits. Based on the
16 children's comments following visits, Mother surmised that Father was discussing custody issues
17 with the children. Mackenzie was hesitant to speak to Minor's Counsel out of fear that Father
18 would be angry with her if he learned that she did not want to go to his house. Both children
19 expressed suicidal ideation on or about June 3, 2026.
- 20 8) Minor's Counsel filed his report on June 8, 2026. After speaking to the children, their therapists,
21 Corey's teacher, the school social worker and others, Minor's Counsel concluded that Father "has
22 continued to emotionally abuse the minors by instilling fear, guilt, and coercion, causing the
23 minors emotional harm." He cited several examples of the children acting anxious and withdrawn
24 when queried about their relationship with Father, as well as both children directly stating they
25 are afraid of him. Minor's Counsel noted that, despite many warnings, Father had demonstrated
26 an inability to comply with the court's long standing order not to disparage Mother or discuss the
27 case with the children.
- 28 9) Mother and Minor's Counsel each explained that Father had been banned from events at the
29 children's school due to his inappropriate behavior on a field trip with Mackenzie's class.

1 10) Minor's Counsel found no evidence that Mother was engaging in behaviors designed to alienate
2 the children from Father. He concluded that "[t]he children's refusal and resistance to visits with
3 their father is based on and attributed to Father's behaviors."

4 11) Father did not submit a supplemental declaration.

5 **B. Findings and Orders**

6 1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child
7 Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in
8 violation to civil or criminal penalties, or both. The country of habitual residence of the minor
9 child is the United States.

10 2) The court finds that the current parenting plan is detrimental to the children's physical and
11 emotional well-being based on the uncontroverted evidence set forth in Mother's supplemental
12 declaration and Minor's Counsel's reports. The Findings and Order After Hearing filed on April
13 1, 2026 is vacated.

14 3) Mother shall have sole physical custody and sole legal custody of Mackenzie and Corey. Father
15 shall have 1-2 hours of supervised visitation with the children each week at Rally Family
16 Visitation Services or other professional supervised visitation program mutually agreeable to
17 Mother and Father. Father shall pay all fees associated with the supervised visits.

18 4) The matter shall be set for a review of Father's supervised visitation on **Thursday, 9/24/2026 at**
19 **9:00 AM in Dept. 404.**

20 5) Mother's attorney shall prepare the Findings and Order After Hearing.

21 6) **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within
22 10 calendar days of the hearing you must either: (a) Serve the proposed order to the other
23 party/counsel for approval, and follow the procedures set forth in CA Rules of Court, Rule
24 5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit the
25 proposed order after hearing directly to the court. Failure to submit the order after hearing within
26 10 days may allow the other party to prepare a proposed order and submit it to the court in
27 accordance with CA Rules of Court, Rule 5.125(d).
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